



(1)

WP-12624-2021

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT AURANGABAD

WRIT PETITION NO.12624 OF 2021

Dadasaheb s/o. Kushabapu Pawar]
Age: 41 years, Occu: Agri. & Social]
Service, R/o. Tambhere, Kolhar Road,]
Pawar Vasti, Tq. Rahuri, Dist. Ahmednagar.] ...PETITIONER

VER S U S

1. The State of Maharashtra]
through the Chief Secretary,]
Mantralaya Mumbai.-32.]

2. The Agriculture & Food Processing]
Department, Mantralaya, Mumbai.]
Through its Secretary.]

3. The Maharashtra Agriculture Education]
and Research Center, 132/B,]
Bhamburdi, Bhosale Nagar, Pune.]
Through its Executive Director.]

4. The Mahatma Phule Krushi Vidyapeeth]
Rahuri, Tq. Rahuri, Dist. Ahmednagar,]
Through its Vice Chancellor.]

5. Shri. Milind Pralhad Dhoke,]
Age: 48 years, Occu: Service,]
R/o. Rahuri, Tq. Rahuri, Dist. Ahmednagar.]...RESPONDENTS

...

Mr. Rahul A. Tambe, Advocate for the Petitioner.
Mr. S. P. Joshi, AGP for Respondent Nos. 1 and 2/State.
Smt. J. P. Reddy, Advocate for Respondent No.3.

Mr. Madhav P. Gude, Advocate for Respondent No.4.
Mr. R. N. Dhorde, Senior Advocate a/w Mr. P. S. Dighe i/by Mr.
V. R. Dhorde, for Respondent No.5.

CORAM : **KISHORE C. SANT &
SUSHIL M. GHODESWAR, JJ.**

RESERVED ON : **17th FEBRUARY 2026.**

PRONOUNCED ON : **12th JUNE 2026.**

ORDER :- [PER- KISHORE C. SANT, J.]

1. Heard Mr. Tambe, the learned Advocate for the petitioner, Mr. Joshi, the learned AGP for Respondent Nos. 1 & 2/State, Smt. Reddy, the learned Advocate for Respondent No.3, Mr. Gude, the learned Advocate for Respondent No.4 and Mr. Dhorde, the learned Senior Advocate i/by Mr. V. R. Dhorde, the learned Advocate for Respondent No.5. By consent of the parties, the petition is taken up for final disposal at the stage of admission.

2. This petition challenges the appointment of Respondent No.5 to the post of University Engineer in Mahatma Phule

Krishi Vidyapeeth (MPKV), Rahuri Dist. Ahmednagar. The petition is filed for issuance of writ of mandamus seeking direction to respondents to initiate steps against Respondent No.5 and other responsible officers in view of judgment and order dated 31.01.2019 passed by this Court in WP/1339/2019. To initiate proper legal action against Respondent No.5 on the basis of inquiry report. Further prayer is made to issue writ of prohibition thereby prohibiting Respondent No.5 from functioning and discharging his duties as University Engineer. To hold and declare that the promotion of Respondent No.5 to the said post is contrary to the provisions of Maharashtra Universities Act, 1990. By way of amended prayer, a writ of quo-warranto is also prayed for.

3. The petitioner claims to be a Vice-President of Anti-Corruption Committee. By profession he is an Agriculturist and claims that he is actively involved in social service. He has approached this Court with a grievance that the Respondent

No.5 is appointed as University Engineer without having qualification and without following due process of law. It is further case that, though his appointment is found to be against the Rules and law, still no action is taken by the Government and the authorities.

4. The fact in short are that the Respondent No.4-MPKV is established under the Maharashtra Agricultural Universities Act. The university comes under the State of Maharashtra- Respondent No.2 through the Agriculture and Food Processing Department, Mantralaya, Mumbai through its Secretary. Respondent No.3 is the Maharashtra Agriculture Education and Research Center, through its Executive Director. Respondent No.4 is the Mahatma Phule Krushi Vidyapeeth where the Respondent No.5 is working.

5. A post of University Engineer became vacant in the university on 01.08.2011. The then Agricultural Minister

forwarded the recommendation letter to appoint Respondent No.5 to the said post by communication dated 13.03.2013. The respondent Nos. 2 and 3 forwarded the letter to Respondent No.4 for taking appropriate steps. Respondent No.4 immediately forwarded the proposal on 30.03.2013. It is only because of the said communication and letter, the respondent No.5 came to be appointed by way of promotion by order dated 18.05.2013. The petitioner on coming to know about such appointment, made a complaint to the authorities pointing out that Respondent No.5 is not eligible for the promotion. Pursuant to the complaint, Respondent No.3 called for detailed report from Respondent No.4. The detailed report came to be prepared. It was specifically concluded that the promotion is properly made. The petitioner, thereafter, again made complaints as regards the works carried out by respondent No.5 for the university, making a grievance that the losses had been caused to the university. According to the petitioner, the inquiry committee found that the respondent

No.5 alongwith other officers was responsible for the loses caused to the tune of Rs.1,00,43,724/-. The petitioner obtained the copy of inquiry report under Right to Information Act. It is thereupon, he again made a complaint to the Governor of State of Maharashtra. Pursuant to the said complaint, again detailed inquiry was directed. It was concluded that the promotion of the respondent No.5 to the post of University Engineer was not as per the provisions of the Act.

6. The petitioner, thereafter, filed Writ Petition bearing No.1339/2019. This Court, in the said writ petition, was pleased to direct Respondent No.3 to take decision on assessment of the material by giving opportunity to the parties and thereafter, to take appropriate decision. The respondent No.3 thereafter informed the respondent No.4 to initiate appropriate action pursuant to the order passed in writ petition and directed to submit report within 15 days. The petitioner was informed on the inquiry that the appointment was

properly made by following procedure. The promotion is now approved by the Government on 18.05.2019 and no action is necessary. The petitioner therefore approached this Court with a grievance that the entire exercise is done to protect Respondent No.5.

7. Mr. Tambe, the learned Advocate for the petitioner argued the petition. He submits that the University Engineer is the post which is to filled in by following procedure as under Statute and the said procedure is not followed. The appointment is therefore illegal. Though this Court had directed to take appropriate action, the authorities have still to cover up the illegalities, have submitted the report to suit the purpose. As per Maharashtra Agriculture University (Krishi Vidyapeeths) Statutes, 1990 and in view of Statues 65 and 65(3), post of University Engineer is to be filled in by advertisement. The Registrar by communication dated 30.03.2013 had sought guidelines from the Deputy Director

(Adm.) i.e. Respondent No.3. The Director of Respondent No.3 on the very day informed that the respondent No.5 is working as Deputy University Engineer can be appointed to the post of Deputy Engineer. He submits that immediately on 18.05.2013, the Government sanctioned the appointment by promotion of the Respondent No.5 by considering Statute 65(3) of the said Statute. He submits that on 21.11.2017, the appointment was again justified. He invites attention to the communication dated 01.02.2018 addressed to the Principle Secretary, Agricultural and Horticulture Department by the Director Agriculture Krushi (Respondent No.3) that the said post could not have been filled in by promotion by referring to Statute 65, wherein it is specifically stated that the post filled in by promotion are specifically given. By Statute 63 that specific provision that except the post of Deputy Registrar, Additional Registrar, Assistant Controller, no other post can be filled in by promotion. The promotion of the respondent No.5 is therefore, against the Statute. He further submitted that on this, the

petitioner immediately wrote a letter to the Chancellor i.e. Hon'ble Governor and made a complaint, and thereafter, approached this Court. Though this Court has specifically passed an order, no action is taken. Only a farce was made to make an inquiry. On 22.04.2019, the Section Officer, State Maharashtra wrote a letter to the Director and the Vice-Chancellor that the decision be taken at the level of the University. He thus submits that the Governor held to be responsible. By communication dated 25.04.2019, the Section Officer avoided to take action stating that the Vice-Chancellor is the appointing authority, and therefore, no action is required by the State. Thereafter, on 30.04.2019, the Director wrote a letter to the Vice-Chancellor that Vice-Chancellor is empowered to take action and proper action be taken. On 23.06.2021, it was only communicated that the Government has approved the promotion. He thus submits that when Statute 63 makes specific provision that except Deputy Registrar, Additional Registrar and Assistant Controller, no other post can be filled in

the promotion still the respondent No.5 is promoted to the post of University Engineer and illegality is committed. Hence, it is necessary to allow the writ petition.

8. In support of his submission, he relied upon the following judgments:

- (i) *Commissioner of Police, Bombay Vs. Gordhandas Bhanji [AIR 1952 SC 16].*
- (ii) *Delhi Agricultural Marketing Board, Through Its Chairman Vs. Bhagwan Devi (Dead), Through Lrs.. [2025 SCC OnLine SC 597]*

9. Mr. Dhorde, the learned Senior Advocate appearing for Respondent No.5 vehemently argued that this petition is against a person who is appointed by the authorities. Being a service matter, the petitioner does not have any locus-standi to challenge the appointment. It is well settled that the service matter is not in the domain of public interest and the petition is not maintainable. So far as writ of quo-warranto is concerned, it is vehemently submitted that the office of the respondent No.5 is not a public office, and therefore, no writ of

quo-warranto can be issued. He submits that there was resolution passed by the University bearing No.15/304 dated 20.11.2013 that the qualification for the appointment to the post of University Engineer is B.E. (Civil) and shall have the experience of the post not lower than the post of Deputy University Engineer. In the present case, the petitioner was having experience and qualification and therefore, was eligible to be appointed as University Engineer. The other respondents also adopted the argument of learned Senior Advocate Mr. Dhorde.

10. In support of his submission, learned Senior Advocate has relied upon the following judgment:

(i) The University of Mysore Vs. C.D. Govinda Rao and Anr. [AIR 1965 SC 491]

(ii) Manohar Maroti Sahare Vs. Dr. Gopal Dhavan and Ors. [2016 (4) Mh.L.J. 336]

(iii) B. Srinivasa Reddy Vs. Karnataka Urban Water Supply & Drainage Board Employees' Assn. And Ors. [(2006) 11 SCC 731]

(iv) Ayaaubkhan Noorkhan Pathan Vs. State of Maharashtra and Ors. [(2013) 4 SCC 465]

11. Learned AGP also opposed the petition. It is submitted that the petitioner has no locus standi. The prayer being for writ of quo-warranto, it was necessary for the petitioner to show that the office of Respondent No.5 is a public office. Learned Advocate for Respondent No.3 also adopts the argument of learned Senior Advocate Mr. Dhorde.

12. This Court has considered the arguments. It is trite law that in the matter of service of the appointment of a person, no public interest litigation can be entertained. In the present case, though the petition is not public interest litigation but is in the nature of public interest. So far as locus standi is concerned, the petitioner is not claiming the said post neither he has shown any other interest in the said post and thus the petitioner does not have locus standi. Since the petitioner has failed to show locus, now needs to be the question considered is as to whether the post held by respondent No.5 can be said

to be a public office. The next question depends upon the earlier depending upon writ of quo-warranto is maintainable. To show that the office of respondent No.5 is public office, the learned Advocate for the petitioner invites attention to the function and duties of the University Engineer to show that he discharges the public duties and functions. The post is created by statute and approved by the Government itself show that the post is public office that respondent No.5 is holding the public office.

13. In the case of *Commissioner of Police, Bombay Vs. Gordhandas Bhanji (supra)*, issue was under Specific Relief Act. The direction was sought under Section 45 of the Specific Relief Act. Direction was sought against the Commissioner of Police, Greater Bombay. The question was of grant of license to construct the cinema hall. In that view the court held that the office of Commissioner is a public office. In the present case, it is pointed out that the respondent No.5 being University

Engineer discharges the various duties and functions. However, those are only for carrying out the purposes of the university.

14. Paragraph No.16 of the judgment in the case of *Delhi Agricultural Marketing Board, Through Its Chairman Vs. Bhagwan Devi (Dead), Through Lrs..* (supra), reads as under:

“16. When the State uses its sovereign power of eminent domain and acquires land for a public purpose, as in the case on hand, i.e., for establishment of a grain market under the control of a statutory Board, such an exercise cannot be set at naught by the beneficiary of such acquisition, viz., the statutory Board, by entering into a private agreement shortly after the acquisition so as to reverse the usage of the power of eminent domain by the State. Validating this dubious enterprise by a statutory beneficiary of a compulsory acquisition would be nothing short of permitting a fraud on the exercise of such sovereign power by the State. Viewed thus, the agreement dated 30.09.1988 was clearly in contravention of the fundamental policy of Indian law and the Arbitral Award dated 10.07.2007, upholding the said agreement, was equally so.”

15. In the case of *The University of Mysore Vs. C.D. Govinda Rao and Anr.* (supra), the Court considered the nature of writ of quo-warranto. The Hon’ble Apex Court considered the Halsbury’s Laws of England to consider the term of public office. Paragraph No.7 of the said judgment reads as under:

“7. “An information in the nature of a quo warranto took the place of the obsolete writ of quo warranto which lay against a person who claimed or usurped an office, 'franchise, or liberty, to, inquire by what authority he supported his claim, in order that the right to the office or franchise might be determined” Broadly stated, the quo warranto proceeding affords a judicial enquiry in which any person holding an independent substantive public office, or franchise, or liberty, is called upon to show by what right he holds the said office, franchise or liberty; if the inquiry leads to the finding that the holder of the office has no valid title to it, the issue of the writ of quo warranto ousts him from that office. In other words, the procedure of quo warranto confers jurisdiction and authority on the judiciary to control executive action in the matter of making appointments to public offices against the relevant statutory provisions; it also protects a citizen from being deprived of public office to which he may have a right. It would thus be seen that if these proceedings are adopted subject to the conditions recognised in that behalf, they tend to protect the public from usurpers or public office; in some cases, persons not entitled to public office maybe allowed to occupy them and to continue to hold them as a result of the connivance of the executive or with its active help, and in such cases, if the jurisdiction of the courts to issue writ of quo warranto is properly invoked, the usurper can be ousted and the person entitled to the post allowed to occupy it. It is thus clear that before a citizen can claim a writ of quo warranto, he must satisfy the court, inter alia, that the office in question is a public office and is held by usurper without legal authority, and that necessarily leads to the enquiry as to whether the appointment of the said alleged usurper has been made in accordance with law or not.”

16. In the said case, the writ was sought against research

reader in English in the Central College, Bangalore. By considering Halsbury's law, Hon'ble Supreme Court held that the said post is not a public office. It was not shown that any statutory provision had been contravened. The Court specifically considered as to whether the office can be said to be public office and set aside the judgment of the High Court which allowed the petition.

17. In the case of *Manohar Maroti Sahare Vs. Dr. Gopal Dhavan and Ors.* (supra), it is held that the office to be a public office, it is necessary that such office is conferred by law as fixed tenure of office and it has power to exercise some portion of sovereign power of the Government. It was held that no PIL is also maintainable. It was further held that the office of Chairman cum Managing Director-Respondent No.2 therein cannot be held to be a public office. Paragraph No.9 of the said judgment reads as under:

"9. It could thus be seen that Their Lordships held that the High

Court in such matters is required to determine first as to whether a case has been made out for issuance of a Writ of Quo-Warranto. It has further been held that jurisdiction of High Court to issue the Writ of Quo-Warranto is limited, which can only be issued when the appointment is contrary to the statutory rules. It will further be relevant to refer to paragraphs 76 and 77 of the said Judgment, which read thus:

The Notification dated 31.1.2004 clearly states that the appointment is on contract basis and until further order. While laying down the terms of appointment in its order dated 21.4.2004, the Government of Karnataka clearly stated that "term of contractual appointment of Sri B. Srinivasa Reddy shall commence on 1.2.2004 and will be in force until further orders of the Government and this is a temporary appointment. "Section 6(1) of the Act categorically states that the Managing Director shall hold office during the pleasure of the Government. Power and functions of the Board are laid in Chapter V of the Act. A reading of the Act clearly shows that neither the Board nor its Managing Director is entrusted with any sovereign function. Black's Law Dictionary defines public office as under:

"Public Office: Essential characteristics of "public office" are (1) authority conferred by law, (2) fixed tenure of office, and (3) power to exercise some portion of sovereign functions of Government; key element of such test is that "officer" is carrying out sovereign function. Spring v. Constantino 168 Conn.563, 362 A.2d 871, 875. Essential elements to establish public position as "public office" are position must be created by Constitution, legislature or through authority conferred by legislature, portion of sovereign power of Government must be delegated to position, duties and power must be defined, directly or impliedly, by legislature or through legislative authority, duties must be

performed independently without control or superior power other than law, and position must have some permanency and continuity, State vs. Taylor."

18. In the case of *B. Srinivasa Reddy Vs. Karnataka Urban Water Supply & Drainage Board Employees' Assn. And Ors.* (supra), the Hon'ble Apex Court held that when the appointments are ordinary appointments, no writ of Quo-warranto would be maintainable. There has to be involvement of the office in carrying out of a sovereign function, delegation of a portion of the sovereign power of the State to the incumbent of such office and some permanency and continuity in the appointments are quintessential features of the public office. In that case, the writ of quo-warranto was sought against Managing Director of Karnataka Urban Water Supply Drainage Board.

19. In the case of *Ayaaubkhan Noorkhan Pathan Vs. State of Maharashtra and Ors.* (supra), the Hon'ble Supreme Court considered the question of locus standi. It was held that the

stranger cannot be permitted to meddle in any proceeding unless that falls within the category of aggrieved person. No PIL is maintainable in service matters. Paragraph No.9 of the said judgment reads as under:

“Person aggrieved:

9. It is a settled legal proposition that a stranger cannot be permitted to meddle in any proceeding, unless he satisfies the Authority/Court, that he falls within the category of aggrieved person. Only a person who has suffered, or suffers from legal injury can challenge the act/action/order etc. in a court of law. A writ petition under Article 226 of the Constitution is maintainable either for the purpose of enforcing a statutory or legal right, or when there is a complaint by the appellant that there has been a breach of statutory duty on the part of the Authorities. Therefore, there must be a judicially enforceable right available for enforcement, on the basis of which writ jurisdiction is resorted to. The Court can of course, enforce the performance of a statutory duty by a public body, using its writ jurisdiction at the behest of a person, provided that such person satisfies the Court that he has a legal right to insist on such performance. The existence of such right is a condition precedent for invoking the writ jurisdiction of the courts. It is implicit in the exercise of such extraordinary jurisdiction that, the relief prayed for must be one to enforce a legal right. In fact, the existence of such right, is the foundation of the exercise of the said jurisdiction by the Court. The legal right that can be enforced must ordinarily be the right of the appellant himself, who complains of infraction of such right and approaches the Court for relief as regards the same. (Vide: State of Orissa v. Madan Gopal Rungta, AIR 1952 SC 12; Saghir Ahmad & Anr. v. State of U.P., AIR 1954 SC 728; Culcatta Gas Company (Proprietary) Ltd. v. State of West Bengal & Ors., AIR 1962

SC 1044; Rajendra Singh v. State of Madhya Pradesh, AIR 1996 SC 2736; and Tamilnad Mercantile Bank Shareholders Welfare Association (2) v. S.C. Sekar & Ors., (2009) 2 SCC 784).”

20. In the present case, we have seen the duties and functions of the University Engineer. This Court does not find that any of the duties and functions to be exercised or discharged by the Respondent No.5 can be said to be a sovereign functions making his office to be a public office.

21. Considering all above, this Court finds that the petition is not maintainable as the petitioner has failed to show locus standi and also show that the office of the Respondent No.5 is public office. On both these counts, the petition must fail. The petition, therefore, stands dismissed and disposed off.

[SUSHIL M. GHODESWAR, J.]

[KISHORE C. SANT, J.]